

February 9, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0002298 WELLS FARGO BANK, N.A. vs. VICTORIA BOLSHAKOFF, an individual

No appearances required. On the Court's own motion, the default prove up hearing is continued to March 9, 2026 at 1:30 p.m. in Dept. A. Plaintiff filed a proof of service evidencing Defendant was served by mail on January 23, 2026 with a Notice of Prove Up Hearing. While there are many attachments to this notice and its inclusive proof of service, the Court cannot determine if, how and when all the attachments including those previously ordered to be served were served. Thus, new notice and evidence of service of all documents shall be filed. In addition, the Court admonishes Plaintiff on the Court's local rules related to bookmarking and courtesy copies.

2. CL0003301 Capital One, N.A., successor by merger to Discover Bank vs. Christine Martindale

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendants via some approved method after the Declaration of Non-Service was filed on December 15, 2025. Absent good cause being shown, the Court intends to set the matter for dismissal pursuant to CCP section 583.420.

3. CU0001216 Greg Bomhoff vs. Michael Decarlo et al

Appearances are required by all parties for a status update regarding Mr. Bomhoff's October 2, 2025 ex parte application for an OSC re Preliminary Injunction.

Cross-Defendant Ron Bomhoff's Special Motion to Strike Defendants' Cross-Complaint is DENIED.

Request for Judicial Notice

Cross-Defendant Ron Bomhoff's request for judicial notice is granted. However, in making its determination on this motion, the Court, "shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based." Code Civ. Proc. § 425.16(b)(2). Therefore, the Court will already consider the pleadings without the need for the request for judicial notice.

Objections to Evidence

The Court rules on Cross-complainants' objection to the declaration of Greg Bomhoff in support of Mr. Bomhoff's Anti-SLAPP motion as follows: Objection 1 is sustained (inadmissible opinion evidence, calls for legal conclusion); Objection 2 is overruled.

Standard of Review